

Feudal Law: A Partially Neglected Theme in Post-medieval Political Thought?

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ABSTRACT

The late J.G.A. Pocock's contribution to the history of political thought was immense, but some elements remain to be fully tapped. While the idea of the 'ancient constitution' has become a term of art, less attention has been paid to the feudal law. Yet feudal jurisprudence was a central feature of post-medieval political argument; indeed, some medieval historians have identified the reification of the feudal law as an early modern phenomenon. Nor did the feudal law carry all the pejorative associations which it bears in the present. Early modern commentators recognised both the oppressive and the more positive associations of feudalism, not least with constitutional government and fragmented authority. Anti-feudalist discourse was a prominent feature during the Enlightenment, but a sensitive appreciation of the historic mutations in feudal tenures also underpinned new developments in social theory. Debates over whether feudalism had been an exclusively European phenomenon or was to be found more generally across Eurasia brought feudal institutions into focus as defining elements in European distinctiveness. Feudal jurisprudence played a significant role too in the ways contemporaries understood state sovereignty and international relations. Surprisingly, perhaps, feudalism has become an unexpectedly prominent presence in American historiography.

KEYWORDS

Feudalism; feudal law; sovereignty; constitutional government; early modernity; J.G.A. Pocock

The recent death of John Pocock at the age of ninety-nine, a mere three months before his centenary, provides the occasion – in celebration as well as in sadness – for an assessment of his immense contributions to the history of political thought and the history of historiography. This essay focuses attention on Pocock's first book, *The Ancient Constitution and the Feudal Law* (1957), and suggests that almost seventy years after publication, much of its potential still remains untapped.¹ The book is not only a classic, but possesses a continuing capacity to reshape our understanding of political concepts and arguments in the early modern era, and later.

The Ancient Constitution and the Feudal Law began life as Pocock's doctoral thesis, the product of Cambridge in the era before the formation of what is now referred to as the Cambridge School of political thought, associated especially with Pocock, Quentin Skinner and John Dunn. The Cambridge in which Pocock studied for his doctorate saw some of the initial stirrings in political thought which helped clear the ground for the Cambridge School, including the work of Peter Laslett and Duncan Forbes, as well as the intermittent presence of Michael Oakeshott, who had left post-War Cambridge, first for Nuffield College, Oxford, then for the London School of Economics, but who

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continued to hold a life fellowship of Gonville and Caius College (where Skinner was an undergraduate) and exercised a certain influence as the founder and editor of the *Cambridge Journal* (1947–54). However, Pocock's doctoral supervisor came from a different stable. Herbert Butterfield of Peterhouse was a keen student of historiography and a revisionist critic of the Whig interpretation of history;² a project in which he was supported by another fellow of Peterhouse, his colleague Brian Wormald, the internal examiner of Pocock's PhD thesis,³ whose pathbreaking study of Clarendon was published in 1951.⁴ Notwithstanding the later Skinner-Pocock revolution in political thought, Pocock's early associations were with both the history of historiography, a favoured subject of Butterfield's, and an anti-Whig revisionism felt more broadly in the then-dominant areas of political and constitutional history. How far, one might ask, did Pocock's recovery of a lively seventeenth-century debate contested by various obscure, non-canonical late seventeenth-century figures – Robert Brady, William Atwood, William Petyt, James Tyrrell – point not so much towards the history of political *thought* as towards a history of political *argument*, situated promiscuously between political history and the history of political thought proper? This was an approach which would flourish in the following decade in the work of American historians like Bernard Bailyn and Gordon Wood,⁵ and in Cambridge in the work of John Brewer (initially an undergraduate on Butterfield's special subject, just before his retirement).⁶ It is perhaps worth noting too that Pocock later contributed to festschriften for both Butterfield and Oakeshott: his early connections through to the late 1960s were eclectic and various.

We should also remember another significant influence from outside Cambridge. Pocock's only real predecessor in the study of late seventeenth-century English historiography was D.C. Douglas, whose book *English Scholars 1660–1730* (1939; 2nd edition, 1951) was first published when he was the newly appointed Professor of Medieval History at Leeds.⁷ While Douglas, who was the external examiner of Pocock's PhD,⁸ examined the milieu of Brady from the perspective of a medievalist primarily interested in the history of scholarly practice, he was nevertheless alert to the enduring retrospective political significance of the Norman Conquest. Indeed, his Murray Lecture at the University of Glasgow (published as a pamphlet in 1946, and cited in *The Ancient Constitution and the Feudal Law*⁹) was devoted to the long polemical historiography associated with the Norman Conquest, from its centrality in the 'arena of seventeenth-century politics' through to the nineteenth-century controversies associated with Edward Freeman and J.H. Round and their uncanny echoes of Stuart historical politics. Notwithstanding the enormous erudition expended on the Norman Conquest, Douglas recognised that political disputes had so 'denaturalized' the topic that the twentieth-century historian necessarily approached the realities of the Anglo-Norman era 'through a haze of heated polemical vapour'.¹⁰

However, it is Pocock's enduring legacy and its still unrealised potential which principally concern us here. In a review of Karl Popper's *The Poverty of Historicism* which eventually appeared in book form in 1957, Arthur Koestler predicted that Popper's was 'probably the only book published this year which will out live this century'.¹¹ As it happens, the young Pocock had met Popper, a refugee from Nazism at Canterbury College, Christchurch on New Zealand's South Island, where Pocock's father Greville Pocock was professor of classics. Naturally enough Koestler had overlooked a somewhat obscure book on seventeenth-century antiquarian debate, which would over the decades attract a readership well beyond those interested in the immediate matter in hand. At the core of Pocock's book were two rival interpretations of the English past: an account of the continuities of English liberties and institutions from an ancient Anglo-Saxon constitution, and an alternative story of rupture and discontinuity centred on the Norman Conquest, championed in the late seventeenth century by Robert Brady, who traced the origins of parliament to the post-Conquest era as the king's feudal court. The book also helped to clear away misconceptions about the broader ideological context of the Glorious Revolution, and, established historical and antiquarian treatises as important, neglected sites of early modern political argument. Historiography often provided both the mode and matter of early modern political debate. The history of political thought and the history of historiography were not discrete enterprises, but overlapped, like the shaded area of a Venn diagram. In honour of the book's thirtieth anniversary in 1987, Cambridge University Press issued a second edition, with an

extended retrospect by Pocock. The book's hinterland of influence extends across several fields, including legal history and jurisprudence as well as the histories of historiography and political thought. But, notwithstanding such acclamation and attention, this essay contends that the implications of *The Ancient Constitution and the Feudal Law* for the broader historiography of political thought have yet to be fully mined and exploited.

One element in Pocock's analysis, the 'ancient constitution', has become prominent throughout early modern historiography, both as a conceptual approach and as a term of art.¹² The notion of an ancient constitution has become almost second nature to historians confronted by precedent-based arguments. The concept diverges significantly from a modern written constitution, being rather a loosely undefined body of principles, precedents, practices and – sometimes – charters, which provided the fundamental political underpinnings of a state or community. Ancient constitutions were products of the early modern political imagination rather than straightforward facts about the medieval past; yet, by the same token, ancient constitutions were not spun entirely out of mere fancy, but bore some plausible relationship to a country's history and institutions. Historians make use of the concept in various ways, not only as a descriptor of theories of institutional continuity, but as a shorthand for a country's supposed first principles of government. As such the concept also features in the adjacent field of ethnogenesis, understandings of the ethnic origins of a nation or political community. The ancient constitution is a widely deployed concept in the study of historically-based ideologies in early modern English political culture, but has also been used more widely. Within a decade of Pocock's book, Hugh Trevor-Roper had applied the concept to George Buchanan's interpretation of the fundamental law of kingship at the purported (but mythical) foundation of Scotland's limited monarchy in 330 B.C.;¹³ which, as further historians have shown, provoked two centuries of debate over whether Scotland's monarchy was indeed elective and accountable or conformed rather to a royalist-Jacobite pattern of indefeasible hereditary right.¹⁴ Similarly, historians recognise that in France, between the sixteenth and eighteenth centuries, proponents of rival Romanist and Frankish theses debated the ancient constitution of French government and the character of its fundamental laws.¹⁵ The idea of an ancient constitution surfaces too in the political culture of America's Founding generation.¹⁶ The conception of the ancient constitution is, perhaps, most intricately realised in Robert Travers's work on eighteenth-century British understandings of India; for here Orientalists perceived a double layering of ancient constitutions, an ancient Persianate constitution which underpinned contemporary Mughal governance, and beneath that the much deeper substratum of an ancient Hindu constitution.¹⁷

The feudal law, on the other hand, has not enjoyed anything like the same currency in historical research. Not that the feudal law has been entirely absent from early modern historiography. Most obviously, Pocock's book – which, despite its primary focus on seventeenth-century England, also tackled developments in sixteenth-century French legal scholarship – paved the way for the work of Donald Kelley in the 1960s on the historical and legal cultures of sixteenth-century France, and the fixation within them on the origins of feudalism. Did its pedigree derive from Europe's classical inheritance or from the irruptions into the later Roman Empire of Gothic barbarians from outside its border? In particular, did feudal law derive from the Roman practice of clientage or from the Germanic *comitatus*, a retinue of warriors that followed its lord? Kelley pointed to the ways in which attention to the feudal problem led to an 'awakening of historical consciousness' and the 'enriching' of historiography through 'the technicalities of legal scholarship'. In particular, the feudal question fostered a greater sensitivity to anachronism, to historical change, and to institutional differences between epochs. Here Kelley highlighted the scholarly interplay of law, history and philology: in Jacques Cujas's edition of a twelfth- and early thirteenth-century compilation of Lombard customs, the *Libri feudorum*, Charles Dumoulin's pioneering philological approach to fiefs, and François Hotman's recognition of the incompatibility of Roman and feudal institutions. The pioneering interdisciplinary scholarship of the sixteenth century on the feudal question, Kelley contended, opened the way for laws to be studied 'in a European context' and also fostered 'a rudimentary kind of comparative method'.¹⁸

But the insights of Pocock and Kelley have had a surprisingly limited effect in reshaping early modern political thought. Feudal jurisprudence, this paper suggests, should occupy a more central place in our understanding of political argument in the post-medieval era. Feudal themes are far from invisible in the historiography; however, it is less clear whether the historiography of the early modern period proportionately reflects their centrality in the outlook of contemporaries, or indeed the important part played by the idioms of feudal jurisprudence in political discourse. We shall examine not only feudal inflections in early modern institutions and ideologies, but also the importance of anti-feudalism as an ideology underpinning reform initiatives, particularly – though not exclusively – during the Enlightenment.

The topic is necessarily baggy, and it is important to emphasise from the outset that our subject is a fuzzy one. It embraces the multiple meanings of feudal law, which is sometimes used in a narrow sense to refer to the legal studies deriving from the *Libri feudorum*, but also with a broader brush to refer to the legal aspects of feudalism, especially laws of land tenure, which were of course never static. Here it becomes rather difficult to establish what is and is not ‘feudal’ in the purist’s sense. How far was the English common law feudal? Whereas Quia Emptores in 1290 prevented the sub-infeudation of tenures, wardholding was only abolished in England at the Restoration in 1660. There’s no straight answer, and there is considerable slippage in usage. Nor, by the same token, does what follows observe a clear distinction between feudal law and what we now call feudalism. It’s not clear, for example, when eighteenth-century commentators talked about ‘feudal government and manners’, that these conceptions mapped directly onto our notions of feudal law, feudalism or feudal society. Terminology is particularly blurred in English, as Attilio Stella notes. Whereas in French (*féodalisme* and *féodalité*), German (*Feudalismus* and *Lehnswesen*) and Italian (*feudalesimo* and *feudalità*), there are separate words to distinguish between a broad social conception of feudalism and a narrower notion of the feudal tie between lord and vassal, in English ‘feudalism’ carries multiple meanings, both socioeconomic and legal.¹⁹ Moreover, we also have to contend with the growing imprecision over the course of the post-medieval centuries in uses (or indeed, arguably, abuses) of the vocabulary of feudalism and vassalage. Our topic embraces both the *ius feudale* and what we might term ‘fuzzy’ feudalism.

It is understandable why early modernists might shy away from feudalism, particularly in the field of political thought. Was the feudal law not largely a hangover from the middle ages, a survival from the past and an unlikely source of conceptual innovation? Was its significance not therefore largely antiquarian? Marxist historians, of course, had their own interest in feudal laws and institutions, but as features of a waning social system, destined to be superseded by new forms of bourgeois property and capitalist social relations. While Marxists studied feudalism as a socio-economic phenomenon and mode of production, much less attention has been paid to feudal law as a way of thinking. Feudal jurisprudence was an idiom of political thought in its own right, and the feudal law suggested a way of comprehending laws and institutions which would become a determining frame of social theory. Feudalism is, of course, further burdened with a set of pejorative associations, particularly with vassalage, oppression and the expropriation of the peasantry. These make it an unappealing prospect as a research topic. Medieval leftovers were not, typically, what attracted scholars to the early modern world.

However, this is to overlook a major strain of revisionism in medieval studies which locates feudalism as – very precisely – an early modern phenomenon. Understandably, perhaps, early modern historians have largely been unaware of a body of scholarship in the adjacent field of medieval history with significant implications for an appreciation of feudal jurisprudence as an emergent – and thereby, potentially, creative and dynamic – element in early modern political thought. The key figures in this area of medieval revisionism have been Elizabeth Brown, author of an influential article in the *American Historical Review* in 1974, ‘The Tyranny of a Construct: Feudalism and Historians of Medieval Europe’, and Susan Reynolds, whose book *Fiefs and Vassals* (1994) set out in some detail the fluid character of the arrangements that have been traditionally pigeonholed as feudalism.

According to Brown, thinking about feudal society gave rise to an ‘unwarranted impression of unity and systematization’ around a much looser bundle of practices, while the term feudalism itself ‘unduly emphasizes, owing to the etymology of the word, the significance of the *fief*.’ Feudalism seemed to succeed as distortion rather than as compelling or insightful explanation of the medieval world. Medievalists were themselves to blame for this state of affairs, as they did not customarily following the logic of their own findings; despite their rejection of feudalism as a concept, they resorted too casually to a feudal vocabulary in their work. This was why Brown was so vehemently resounding in her conclusion: ‘The tyrant feudalism must be declared once and for all deposed and its influence over students of the middle ages finally ended.’²⁰

Reynolds took Brown’s grouse a stage further, arguing that *fiefs* and vassalage were not the ‘central and defining institutions’ of the medieval world, but needed to be evaluated alongside a range of both horizontal and vertical relationships, including kinship, lordship and state power. Moreover, legal customs and practices themselves had been remarkably mutable, notwithstanding the possible impression given by the twelfth-century Lombard compilation of feudal law in the *Libri feudorum*. According to Reynolds, ‘*fiefs* and vassalage, as they are generally defined by medieval historians today, are post-medieval constructs, though rather earlier than the construct of feudalism’. These concepts derived from ‘a framework of interpretation that was devised in the sixteenth century and elaborated in the seventeenth and eighteenth.’ The jurists of the sixteenth and seventeenth century reified medieval institutions and practices into a body of feudal law. The notion of the feudal law came first and then the idea of a feudal system, becoming progressively elaborated as the thinkers of the Scottish Enlightenment and then Marx himself further constructed theories of feudal society. To use concepts like the *fief* or vassalage, Reynolds believed, was to see the middle ages through ‘seventeenth- or eighteenth-century spectacles’. The ‘feudal paradigm’ was a retrospective invention, indeed something of a mirage; for during the middle ages themselves the full collection of attributes ascribed to feudal-vassalic institutions had never coexisted anywhere as a ‘coherent bundle of institutions’ distinct from other contemporary bodies and practices.²¹ The implications for early modernists and their appreciation of the feudal law are considerable. Although, as Stella has shown, there was considerable discussion across Europe from c. 1300 onwards of the Lombard customs collected in the *Libri feudorum*, their status long remained uncertain, notwithstanding their academic incorporation as an attachment to the *Corpus iuris civilis*.²² Feudal *jurisprudence* more clearly flourished in the early modern era than in the middle ages, and was neither a hangover nor an anachronism.

Although the revisionist turn dates only from the 1970s, there are suggestive hints in the work of F.W. Maitland that anticipate elements of the Brown-Reynolds line. In his *Constitutional History of England* (1908) Maitland noted that ‘we do not hear of a feudal system until feudalism had ceased to exist’. This provided the opportunity for a mischievous joke about the introduction of the feudal system: ‘Now if an examiner were to ask who introduced the feudal system into England? one very good answer, if properly explained, would be Henry Spelman’.²³ The expected answer was, of course, William the Conqueror; whereas Spelman, an early seventeenth-century antiquary, was one of the central protagonists in *The Ancient Constitution and the Feudal Law* who, diverging from Edward Coke’s insular account of England’s immemorial law, saw that English forms belonged rather to a broader European category of feudal laws and institutions.²⁴ The feudal system, according to Maitland, was ‘an early essay in comparative jurisprudence’; in other words, as a system it belonged in the realm of *early modern* intellectual history.²⁵

This awareness that feudal-ism was a post-medieval reification also surfaced in mid twentieth-century historiography, both in Marxist analysis and among anti-Marxists. Rushton Colbourn and Joseph Strayer in their emphatically non-Marxist analysis of the topic, which treats feudalism as ‘primarily a method of government, not an economic or a social system’, describe the ‘idea of feudalism as an abstraction’ which post-medieval scholars concocted out the facts of medieval European history. Feudalism as such was not itself a fact of medieval history, but ‘invented’ as a shorthand for ‘a long series of loosely related facts’, and fully realised as a concept only by thinkers in the

eighteenth century as a description of ‘certain institutions whose remains survived in their time.’²⁶ In this particular respect, ironically, Colbourn’s analysis anticipated very precisely that of the Marxist historian Eric Hobsbawm, who traced the terminology of the ‘feudal system’ and ‘feudalism’ to the mid-eighteenth-century Scottish Enlightenment and the associated movement there for agrarian improvement.²⁷

A recent turn in political economy which has rescued feudalism from antiquarian redundancy further compounds the potential effect of the Brown-Reynolds revisionism. Feudalism, it transpires, is a revenant, returned to haunt the present by the structural asymmetries of the post-modern digital economy, where wealth is amassed on a prodigious scale without the need for masses of employees, or middle managers to direct them. Joel Kotkin’s *The Coming of Neo-Feudalism: A Warning to the Global Middle Class* (2020) argues that the twenty-first century is living through a ‘feudal revival’, a return to a post-industrial pre-capitalist world of hierarchy and stagnation, involving huge concentrations of wealth and power under a new kind of aristocracy as well as a loss of upward class mobility of the sort seen in the era of liberal democracy. The world is dominated by a closed oligarchy at the top of which sit the ‘tech overlords’ of California. Beneath the new aristocracy which is a reasonably well-off yeomanry, but a class which lacks any capacity to rise further into the higher neo-feudal classes. Further below are impoverished serfs, somehow scraping a meagre subsistence and subject to the whims of the ruling oligarchy. There is, however, a potential counterbalance in the shape of an educated clerisy – a counterpart to the medieval Church. Yet like the medieval Church this clerisy poses no real threat to the neo-feudal order, for it promotes ideals of environmental sustainability, the corollary of which is to curb growth, and by extension social mobility, thereby reinforcing stasis. Nevertheless while the clerisy implicitly urges the serfs to be happy with their lot, they have not paid much heed to the message of the intelligentsia; and we have seen a number of populist explosions – akin to peasant revolts – in the form of the Brexit vote, Trumpism and the gilets jaunes. Yanis Varoufakis, the libertarian Marxist and former finance minister of Greece, adopts a similar line in *Techno-feudalism: What Killed Capitalism* (2023), a penetrating analysis of the political economy of twenty-first century post-capitalism. Varoufakis unmask the real character of the tech platforms which hold sway in our economies. They look like online markets, but are in fact digital fiefdoms. This is because they do not operate upon a profit model so much as on what he calls ‘cloud rent’, a high-tech return to a mode of feudalism. Traditional capitalists, who are still present in our economies, find themselves downgraded to the status of vassals, subject to the new feudal overlords of the cloud. The rest of us have become, largely without realising it, serfs, contributing our unpaid labour to the tech overlords.

Of course, the various notions of feudalism found in twenty-first political economy are, in some measure, caricatures of the original; not least because the resonances of feudalism are today almost entirely pejorative. Our constricted sense of the phenomenon is entirely focussed on its negative features as a system of oppression, certainly by contrast with the polyvalent understandings of feudalism found in the early modern era. While we recognise today that feudalism is hard to pin down exactly as a phenomenon, being amphibiously military and socio-economic as well as a body of law, we are not generally alert – as early modern observers were – to the more positive features of feudalism, such as the fragmentation of authority it involved and the rudimentary constitutional forms to which it gave rise. What is most striking about eighteenth-century discussions of feudalism is their roundedness and ambivalence. David Hume described the ‘prodigious fabric’ of the feudal law and government as having preserved over several centuries ‘a mixture of liberty and oppression, order and anarchy, stability and revolution’.²⁸ Similarly, Francis Stoughton Sullivan, the first Regius Professor of Feudal and English Law at Trinity College Dublin, contrasted the ferocious origins of feudal tenures with their fuller realisation eventually in constitutional modes of governance: ‘from a mere military system, formed and created by the necessities of a barbarous people, for the preservation of their conquests, a more extensive and generous model of government, better adapted to the natural liberties of mankind took place’.²⁹ This chequered equivocation, so pronounced in eighteenth-century analysis, contrasts sharply with the disparagement feudalism attracts in modern

political commentary. Nevertheless, as late as the 1950s Colbourn contended that feudalism generally paved a pathway towards later forms of government ‘in which there is restraint of governing power’,³⁰ a modified reiteration of eighteenth-century assessments.

The negativity of today’s received assumptions about feudalism are not entirely misconceived. There were, as we shall see, many modernising critics of feudalism in early modern Europe, and the topic became a prominent feature of Enlightenment campaigns for agrarian improvement. Nevertheless, outright anti-feudalism was only one among a range of responses to feudalism in early modern political thought. Feudal law idioms were, as we shall see, centrally deployed in certain areas of political discourse, including the sphere of international law which was as much a domain of the *ius feudale* as it was of an emerging *ius gentium*. Moreover, hypotheses about the historic mutations of feudal law tenures played an important part – noticed by some scholars, but perhaps unduly unsung – in the emergence during the early modern era of what we might now call social theory. Indeed, far from feudalism being regarded as stagnant and unchanging, it was its mutability and evolution which were prominent in early modern analysis of the phenomenon. Above all, there was a recognition – more forcefully emphasised by contemporary early modern commentators than by their modern scholarly successors – that feudal institutions provided the basic underpinning model for parliamentary modes of legislation and governance. Indeed, although Pocock stressed the royalist significance of the feudal law in Brady’s work, other historians have shown how easily later generations of Whigs in the eighteenth century appropriated feudalist scholarship to their own very different ends.³¹ The feudal law, according to several early modern observers, was the core ingredient in the constitutional forms which still persisted in European polities during the age of absolutism, most obviously in the Holy Roman Empire. This raised the question of how far feudal institutions were responsible for constitutional forms and survivals in early modern Europe? More especially, was European exceptionalism and variegation – by contrast, most obviously, with the monolithic despotisms of Asia – the product of Europe’s feudal inheritance from the barbarian conquerors of the Roman Empire? This, in turn, posed a further crucial question, one particularly prominent in the eighteenth century: was feudalism itself an institution found only in Europe, or were feudal laws to be found, if one looked closely enough, in the arrangements of non-European societies? Feudalism was, arguably, at the heart of discussions about European distinctiveness, and underpinned early ventures into the fields of comparative government and jurisprudence.

Perhaps it’s easiest to start with anti-feudalism, the aspect of this phenomenon which aligns most neatly with our modern assumptions. Christopher Hill’s identification of the Norman Yoke as a central feature of mid seventeenth-century English radicalism emerged independently of Pocock’s work, first surfacing in an essay entitled ‘The Norman Yoke’, published in 1954.³² Hill demonstrated that radicals focussed on the Norman Conquest as an oppressive rupture in English history, which had imposed oppressive feudal burdens on the hitherto free people of Anglo-Saxon England. This strain of anti-Normanism – the nostalgic dream of return to a pre-Norman, non-feudal golden age – would remain a conspicuous feature of English radicalism into the late eighteenth and early nineteenth centuries. In this respect English anti-feudalism diverged from anti-feudalist movements elsewhere, including Scotland, which were more closely attuned to campaigns for agrarian improvement and modernisation.

This general aspect of the Enlightenment attracted the attention of Franco Venturi,³³ but has generally been studied in narrowly national or regional contexts. A notable exception is Venturi’s British admirer, John Robertson who has explored in tandem the eighteenth-century Scottish and Neapolitan campaigns for the liberation of private property from the toils of superiority and other feudal distortions.³⁴ In France, most famously, the Enlightenment campaign against feudalism culminated in a dramatic session of the new National Assembly which on 4 August 1789 in the early stages of the French Revolution passed eighteen laws overturning various feudal practices and abuses. The road to the August Decrees is set out in J.Q.C. Mackrell’s study of anti-feudalism in eighteenth-century France, published in 1973, which remains a classic account of an Enlightenment assault on an oppressive anachronism, a critique in good part premised on the Physiocratic theory

of the economy.³⁵ However, we should also note the central paradox in Alexis de Tocqueville's *L'Ancien Régime et la Révolution* that the revolution against feudal oppression occurred in that part of Europe where a substantially moderated feudalism was in practice least oppressive. Nevertheless, Tocqueville pointed both to the importance of attitudes towards feudalism (which became sharper as anachronistic feudal regulations appeared to lose their rationale) and also to various ironic consequences which attended the relaxation of feudal laws, including several burdens newly incurred by peasants who had acquired land.³⁶

In parallel with Mackrell's work, a series of scholars – Nicholas Phillipson, Rosalind Mitchison, Colin Kidd, and, with a greater sensitivity to a Montesquieuan defence of feudal practices, Tom Pye³⁷ – has shown that anti-feudalist arguments were, in tandem with agrarian patriotism and a nascent political economy, at the heart of Scotland's eighteenth-century Enlightenment. Targets for reform or outright abolition included heritable baronial franchise courts, wardholding vassalage and tailzies, or Scots entails. The campaign for agrarian improvement in eighteenth-century Scotland was in large measure an anti-feudalist effort to liberate owners of property from the constraints of feudal superiority. Nevertheless, the anti-feudalist campaigners in Scotland did not sing in unison. There was considerable disagreement between Lord Kames who advocated the assimilationist reform of Scottish feudal institutions along lines seen in post-feudal England to meet the needs of a modern commercial society, and John Dalrymple, who thought that force of circumstance in manners and economic life would serve to modify Scots law without the need for drastic intervention.³⁸ The radical historian Gilbert Stuart challenged the view of William Robertson that the sustaining ethos of feudalism had been aristocratic.³⁹ Not so, argued Stuart; the power of feudal nobles depended on their followings, which they needed to cultivate rather than, as Robertson crudely assumed, simply oppressed.⁴⁰

However, the scholarship on anti-feudalism has not overlooked the counter-currents within feudal jurisprudence and other forms of social enquiry, which substantially complicate early modern understandings of feudalism. There was plenty of hostile negativity to be sure, but partly counter-balanced by studies of the feudal law which were neutral and dispassionate, and also by an emergent social theory capable of reappraising the positive imprints which the feudal law had left upon European institutions. Indeed, we should note that within the Scottish Enlightenment feudal law was not seen as intrinsically oppressive in itself at all times and places; rather it had only become so with the coming of a more commercially-orientated way of life in which feudalism lost its rationale and became burdensome as an anachronism that was now out of kilter with emergent market practices. In the aftermath of the Jacobite rebellion of 1745–6 the British government transformed Scottish society, along lines welcomed by Scots agrarian improvers. The anti-feudal reforms of the late 1740s abolished wardholding vassalage and most of the heritable feudal jurisdictions belonging to landowners. However, a more commercial form of feudal tenure, feu-ferme (based on annual payment of feu duty rather than military service) would endure in Scotland – largely without controversy – until the final abolition of feudalism, under the provisions of the Abolition of Feudal Tenure (Scotland) Act (2000), in 2004. Nevertheless, in the interim there were sustained campaigns against Scots entails, or tailzies, between the 1760s and the Rutherford Act of 1848, which further amended tailzie law;⁴¹ and an anti-landlord tradition persisted into the twentieth century in Scottish socialist politics, most famously in *Our Scots Noble Families* (1909), by Thomas Johnston, later Secretary of State for Scotland during World War II.

In the eighteenth century the evolution of feudal tenures and institutions provided an influential theme for an emergent historical sociology. However, an earlier work Thomas Craig's *Ius Feudale* (in manuscript; first published 1655) played a crucial intermediary role – among the Scots especially – in fostering something akin to historical sociology. For a start Craig – who features in *The Ancient Constitution and the Feudal Law* – rejected both the thesis that feudal laws derived ultimately from ancient Roman institutions and the commonly received idea that feudal tenures had first appeared among the Lombards and had then spread to other parts of western Europe. Instead Craig replaced the diffusionist model with a contextualist account of how feudalism as a product of social

conditions, particularly those of an era of barbarian warfare. Nor was feudalism a static body of law. Rather Craig broke the history of feudalism down into four broad phases, namely the infancy, childhood, adolescence and manhood of feus. Originally, fiefs had been allocated annually, then in course of time were granted on a lifetime basis, and thereafter became hereditary, at first only to the grantee's sons, then to grandsons and to some collaterals, and eventually on a more general basis to all descendants in the direct line and to all collaterals descending from the original vassal.⁴² Not only was the feudal law a dynamic phenomenon, but local modifications across the countries of western Europe within the capacious domain of this *ius commune* provided the possibility of a comparative historical jurisprudence, most obvious to Craig in the differences between Scottish feudal practice and the general principles set out in the *Libri Feudorum*.⁴³ The conjectural historians and proto-sociologists of Scotland's eighteenth-century Enlightenment were to obsess over the variations in feudalisation (and defeudalisation) to be found across Europe. Comparative study of the emergence, growth and transformation of the feudal law was a vital theatre in the eighteenth-century conceptualisation of socioeconomic and juridical change.⁴⁴ Closer to home, the history of feudal laws in Scotland and England from the eleventh century onwards provided a crucial plank in the emergence of a comparative science of society. The analyses of Lord Kames and Sir John Dalrymple explored common features and points of divergence within a common legal heritage.⁴⁵ The conjectural method pioneered by the Scots – an approach which allowed them to extrapolate backwards beyond the limits of written evidence – was applied to the problem of accounting for the origin of fiefs and for the transitions between annual, life and hereditary fiefs, as well as later mitigations and relaxations of strict wardholding feudal practices. In addition, feudalism was intermixed with the celebrated three or four-stage model of human progress formulated in the Scottish Enlightenment. In the case of Adam Smith, for example, these stages were also combined with a scheme of post-Roman phases of law and government: allodial, feudal and modern.⁴⁶ Changes in ownership and inheritance provided an entry point into wider sociological discussions of material circumstances, forms of military organisation, constitutional matters and cultural themes, including chivalry.⁴⁷

The Scots received direct contemporary inspiration from Montesquieu's *De l'Esprit des Lois*, whose message, as Pye emphasises,⁴⁸ Dalrymple strongly championed; but we should not discount the pervasive native influence – on the likes of Kames, a judge on the Court of Session, or John Millar who would become Professor of Civil Law at Glasgow – of Craig's influential *Ius Feudale* (published in a second edition at Leipzig in 1716, and a third at Edinburgh in 1732). Craig's account of the gradual phased consolidation of fiefs provides a suggestive alternative example of how a long drawn-out historical process might be disaggregated into distinct phases of development and refinement. Evidence of the abiding influence of Craig's concerns comes from the student career of Walter Scott, who on three occasions between 1789 and 1791 gave papers on the origins of feudalism – to Dugald Stewart's class at Edinburgh University, to the Speculative Society and to the Literary Society (which he had co-founded). Scott was not atypical in this respect, for the feudal system – its origins, its evolution and its later acquisition of disfiguring features such as entails – provided an obsessive subject for papers read at Scotland's intellectual clubs during the age of Enlightenment.⁴⁹ Scott echoed Craig's line on the question. The origins of feudalism were not to be sought in the voluntary spread of Lombard tenures nor in diffusion by conquest and imposition, but ascribed a more 'general origin', showing how feudal tenures arose from 'principles common to all nations when placed in a certain situation'.⁵⁰ According to Mackrell, a similar sort of story might be told about eighteenth-century France, where, its polemical character and antiquarian matter notwithstanding, it was 'the debate over the origins of fiefs which first served to direct French historians to the study of society as a whole'.⁵¹ Feudalist scholarship was deeply interwoven during the Enlightenment with an emergent science of society.

The enduring significance of the feudal law for international relations came into focus in a powerfully revisionist article by the Scottish historian William Ferguson in 1974. Ferguson showed that a crucial strand of the vexed debates which preceded the Anglo-Scottish parliamentary union in

1707 revolved around the question of whether the English crown enjoyed imperial suzerainty over what some English pamphleteers contended was an otherwise sovereign (but dependent) Scottish kingdom.⁵² A central proponent of English imperial suzerainty over Scotland was William Atwood – as it happens, also one of the principal protagonists, on behalf of a Whig interpretation of the ancient constitution, in *The Ancient Constitution and the Feudal Law*. Significantly, Atwood's first intervention in the debate was entitled *The Superiority and Direct Dominion of the Imperial Crown of England, over the Crown and Kingdom of Scotland* (1704). The basis of England's claim was, it transpires, as much feudal as it was imperial. For 'direct dominion' here is an English rendering of *dominium directum*, a core term in feudal jurisprudence meaning feudal superiority. The contrast in feudal jurisprudence is between *dominium utile*, meaning ownership of the fee, and the residual feudal rights retained by the superior over a fee which he does not own. In other words, Atwood aligned Scotland's status as a sovereign kingdom with mere ownership, *dominium utile*, in contrast to the English crown's superiority, *dominium directum* over the kingdom of Scotland as a fee.⁵³ By contrast, Atwood's Scottish opponents stressed not only the sovereignty of Scotland but what they called its 'independency' from any hint of English overlordship or suzerainty. A century earlier Thomas Craig had composed a manuscript treatise in Latin on the homage question, 'De Hominio' (1602), which was translated and published under the more dramatic title *Scotland's Sovereignty Asserted* (1695) by the Scottish pamphleteer George Ridpath. Craig had argued that the English case to a historic feudal superiority over Scotland was founded on anachronism. For this claim was based on a feudal relationship, but feudal tenures had only come to England with the Normans in the second half of the eleventh century. This demolished the notion of an ancient English claim to *dominium directum*. In any case, there was no evidence of English rights of wardship over Scotland during royal minorities, or of English consent having been required at the inauguration of Scottish kings, both of which would be necessary if Scotland's kings had owed homage to the English crown for the Scottish kingdom.⁵⁴ Scottish commentators agreed that there had been a feudal connection between the Kings of Scotland and England, but only for personal estates held by the Kings of Scotland in the counties of England, not for the kingdom of Scotland itself.⁵⁵

This fierce Anglo-Scottish dispute was no archaic outlier in seventeenth- and eighteenth-century international relations. Revisionist historians now recognise that the much-advertised 'Westphalian' system of international relations which originated at the end of the Thirty Years' War has been overhyped. While the Westphalian agreements did give the component states of the Holy Roman Empire the quasi-sovereign capacity to conclude alliances that were not directed against the Empire, historians such as Derek Croxton and Andreas Osiander point to the slow development of impersonal conceptions of state sovereignty, and the continuing purchase of medieval ideas of personal feudal obligation.⁵⁶ Indeed, an appreciation of this lingering feudal dimension to international relations helps to clarify the agreements which concluded the Thirty Years' War. Under the Treaty of Osnabruck (1648) between the Empire and Sweden, the Swedish crown was given various territories – Western Pomerania, the islands of Rugen, Usedom and Wollin, the bishoprics of Bremen and Verden, and the port of Wismar – to be held as imperial fiefs, 'in perpetual and immediate fief of the Empire'. More confusingly, under the Treaty of Munster (1648) between the Empire and France the towns of Alsace were transferred to France, but 'in that liberty and possession of immediacy to the Holy Roman Empire, which they have hitherto enjoyed'. This puzzling arrangement – not least the meaning of the term 'immediacy' – only makes sense within the feudal regimen of the Empire. Although France was in sovereign control of the towns, it lacked any title of superiority; meanwhile Alsatian towns continued to send representatives to the Imperial Diet and to pay Imperial taxes.

Eighteenth-century writers on international law acknowledged this continuing interpenetration between the *ius feudale* and the *ius gentium*. Emer de Vattel in *Le Droit des Gens* (1758) considered feudatory and tributary relations between sovereign powers, as well as the capacity of the vassal princes and states of the Holy Roman Emperor to act as sovereigns in respect to making treaties and forming alliances with foreign powers.⁵⁷ The subject assumed a high profile in the attempt

in 1795 by the English jurist Robert Plumer Ward of the Inner Temple to make sense of the European states system and its history. Ward reckoned that it was the complexity of feudal arrangements – a multiplicity of ‘petty sovereignties’; confusions in status, with intervening layers of subordination ‘to mediate, as well as immediate lords’; and interconnections in the form of vassalage and superiority which crossed regnal boundaries – which produced in the middle ages an international patchwork characterised by ‘intricacy and mischiefs’. ‘Absolute independence’ as such was a chimaera, with rulers paying homage to other kings, popes or emperors for parts of their possessions, or entitled by their various feudal privileges to interfere in one another’s territories. Sovereignty itself was subject to ‘a variety of modifications that allow a feudal vassal to be fully sovereign quoad [with respect to] the right of making peace and war, with all but his lord paramount.’ The feudal ‘niceties’ of this medieval legacy had ‘transferred themselves into the law of nations, and begat an endless maze of trouble and confusion’. Although feudalism no longer retained its previous ‘vigour’, the Holy Roman Empire remained a strange hybrid, with its components enmeshed within the feudal law yet also enjoying a quasi-sovereign status with respect to the law of nations. Ward was conscious that the ‘whole spirit of the feudal law’ had insinuated itself within the law of nations.⁵⁸

What ultimately rationalised the confusingly quilted feudal sovereignties of early modern Europe were processes of mediatisation, many of which occurred in the final years of the Holy Roman Empire, under Napoleonic pressure, between 1803 and the Empire’s collapse in 1806. The three hundred direct vassals of the Holy Roman Emperor – free cities and ecclesiastical principalities, as well as the tiny territories, often enclaves, of imperial knights and counts – were reduced to thirty-nine. The restructuring of the Empire saw these smaller direct fiefs absorbed into the larger states of the Empire, thereby losing their direct feudal immediacy to the Emperor. The Congress of Vienna decided not to reverse the process of mediatisation, and the post-imperial German Confederation of 1815 which succeeded the Reich confirmed the effects of these late imperial mediatisations.⁵⁹ However, as Joachim Whaley reminds us, we should not assume that the demise of this imperial-cum-feudal patchwork was somehow inevitable. Not only had market-oriented agriculture and the stirrings of industrialisation coexisted with the feudal institutions of the Empire, but contemporaries had seriously debated the possibility of enlightened reform within the structures of the Reich.⁶⁰ Given the feudal textures of the Empire, no single concept of sovereignty had prevailed there. Rather, it existed in different forms, including the *superioritas territorialis* (or *Landeshoheit*) of rulers who were themselves direct imperial vassals as well as superiors within their own territories. Previously, contemporaries had debated whether imperial knights, direct vassals of the Emperor but possessed of only tiny ‘Lilliputian’ parcels of territory, could properly be designated as holders of *Landeshoheit*, or were merely, notwithstanding the knights’ immediacy to the Emperor, lordships, not states.⁶¹ Only with the formation of the Confederation of the Rhine in 1806 were the former recognised holders of *Landeshoheit* under the titular suzerainty of the Holy Roman Emperor – that is the rulers of states proper – endowed with ‘plénitude de la souveraineté’.⁶²

The feudal law was also a vital adjunct to discussions of European distinctiveness. Were feudal tenures a form of European legal exceptionalism, or were similar kinds of arrangement to be found in Asia? Thomas Craig touched on the question in *Ius Feudale*, noting that Turkish timariots bore a signal resemblance to fiefs.⁶³ This point was noted by Pocock in *The Ancient Constitution and the Feudal Law* where he also discussed similar comparisons in the works of François Hotman and James Harrington.⁶⁴ Throughout the seventeenth and eighteenth centuries the existence (or not) of Asiatic fiefs became a major issue in political thought. Most obviously, it intersected with the topic of Oriental despotism. Did Asiatic rulers hold all the territory of their lands as their own possession? Or were there intermediary landowners, as in European feudalism? Was feudalism ultimately a pan-Eurasian phenomenon, or were Asian polities fundamentally different from those of Europe? The Mughal Empire in India seemed to bear some resemblance with the Holy Roman Empire, with what appeared to be the vassalage of minor princes beneath the

Mughal Emperor as their lord paramount. On the other hand, there was no counterpart in the Mughal system to the imperial diet of vassal-rulers within the Holy Roman Empire. The French doctor, traveller and ethnographer François Bernier argued that the Mughal emperor claimed the rents of all lands except private gardens. The whole territory of his Indian realms belonged to him, and there was no check on his powers from an intermediary body of hereditary landowners. Rather any offices or positions were at the whim of the ruler and did not derive from a powerbase in land.⁶⁵

Bernier's conception of the untrammelled despotism of Asiatic rulers helped to shape Montesquieu's understanding of the distinction between Europe and Asia. Indeed, these differences underlay Montesquieu's otherwise unusual typology of governments – republics, monarchies and despotisms – where what might otherwise seem a subtle distinction between a monarchy and a despotism depended rather on the glaringly stark differences between European and Asiatic polities.⁶⁶

On the other hand, a number of writers challenged the Bernier-Montesquieu line. The eminent orientalist Abraham Hyacinthe Anquetil-Duperron, best known as an expert on Zoroastrian religion and for his edition of the *Zend-Avesta*, addressed Asiatic polity in his *Législation orientale* (1778). It was not the case that in Ottoman Turkey, Safavid Persia and Mughal India all land belonged to the ruler. There were property rights in these Asiatic realms; and while, to be sure, there were many instances of flagrant tyranny in these regimes, they were not as such *systems* of despotism.⁶⁷ Sir James Porter, Britain's ambassador to Constantinople between 1746 and 1761, concurred in his own assessment of Turkish government in *Observations concerning the Religion, Law, Government and Manners of the Turks* (1768). There were recognisably feudal tenures in the Ottoman Empire, and as such potential limits on despotism.⁶⁸

Some antiquaries explained why there should be a basic similarity in feudal institutions and laws across the Eurasian landmass. According to James Ibbetson in *A Dissertation on the Folclande and the Boclande of the Saxons*, 'the various tribes of barbarians that inhabited the northern regions of Europe and Asia' had been 'closely connected in their manners, customs and institutions'. Feudalism, Ibbetson contended took its rise among these ancient barbarians, first in Europe between the sixth and ninth centuries, and then later in Asia.⁶⁹ The Scots orientalist John Richardson pursued the same line with a subtle twist: feudalism had originated not in Europe, but was indigenous to Asia, and had subsequently been transplanted to Europe. Thus it was no surprise that in Persia, India and Tartary the 'whole detail of government was feudal'.⁷⁰

The stadialist analyses of the Scottish Enlightenment suggested an alternative explanation. Stadiatism was the notion that the whole of humankind advanced – albeit at different tempos, accelerated or retarded as a result of various contingent factors – through three or four common stages of social, economic and institutional development, via rudimentary hunter-gathering, via herding and agriculture, to modern commercial refinement. In his *Origin of the Distinction of Ranks* (1771), John Millar noted that many authors who had 'written on the feudal law, seem to have considered that system as peculiar to the modern nations of Europe'. But Millar questioned this assumption: something similar was to be 'found in many distant parts of the world, where it never could be derived from imitation'. In other words, the spread of feudal forms went well beyond countries that bordered Europe and might have simply borrowed it from their neighbours. Was it, perhaps, Millar suggested, a universal aspect of the natural history of society? After all, Millar identified feudal-like arrangements in Turkey, India, Pegu [Myanmar], Malaya, the East Indies, and in Africa in the Congo.⁷¹ We can see a parallel approach, as Silvia Sebastiani has noticed, in the work of William Robertson, who challenged the argument of Montesquieu that feudalism's appearance in Europe constituted a singularity.

Sir Charles Rouse Boughton adopted a similar tack in his contribution to the late eighteenth-century debate over the identity of the Indian zamindar class. Rose Boughton conjectured that 'the rise and progress of private property have been nearly similar throughout the world; always keeping pace with civilization'. Asia was no exception. The zamindars were a property-holding class, who possessed sunnud [charters] to their lands.⁷² On the other hand, James Grant argued that in

India the sovereign was the sole proprietor of the land, and zamindars were merely tax officials, with no stake in the land.⁷³

Scholars have, of course, paid considerable attention to discussions about Asiatic despotism and its place in an emergent science of politics, but less so to related questions about the character and extent of feudal laws and institutions. While Montesquieu's typology of regimes – including the contrast between European kingdoms and Asian despotisms – has attracted enormous interest, chapters 30 and 31 of *De l'esprit des lois* on the origins of the feudal law are widely regarded as an antiquarian supplement to the main argument. As Robert Shackleton noted, Montesquieu added the chapters on feudalism after largely completing *De l'Esprit des Lois*.⁷⁴ However, this section was, perhaps, integral nonetheless to the overall argument, and much more than an afterthought. Celine Spector – who devotes a whole chapter to feudalism in her study of Montesquieu's political thought – has pointed out that these seemingly arid, technical passages underpin Montesquieu's central conception of moderate monarchy.⁷⁵ Generally speaking, however, scholars – while pointing to Montesquieu's engagement with the domestic debate between the camps of Boulainvilliers and Dubos on the historic nature of French government – have not pushed the connection with Montesquieu's wider remarks on Asia. What are we to make of Montesquieu's enigmatic remarks on the origins of the feudal law that this was an 'event which happened once in the world, and perhaps will never happen again' ('un événement arrivé une fois dans le monde, et qui n'arrivera peut-être jamais')?⁷⁶ Is this a coy reference to the differences between Europe and Asia? Certainly, the insight proved provocative. William Robertson, operating in parallel, as Silvia Sebastiani has noted, with the universalist approach of his fellow Scot Millar, challenged Montesquieu's notion that European feudalism constituted a singularity.⁷⁷

Indeed, as we have seen, the two topics – Asiatic despotism and the feudal law – were in fact deeply connected, if not inseparable, in an embryonic comparative jurisprudence. It was obvious, for example, to the early nineteenth-century Whig historian Henry Hallam, who contended that the 'feudal law' was the reason that in Europe 'the very names of right and privilege were not swept away, as in Asia, by the desolating hand of power'; and that 'so far as the sphere of feudality extended, it diffused the spirit of liberty and the notions of private right'.⁷⁸ However, in this light, the extended mini-treatises on 'Japanese Feudalism' and 'The Asiatic Mode of Production' appended to Perry Anderson's *Lineages of the Absolutist State* (1974)⁷⁹ come into focus as a free-range Marxist's contributions to a long-running debate on Eurasian modes of law and government; a dispute which went back via Karl Wittfogel, whose *Oriental Despotism* was published in the same year as *The Ancient Constitution and the Feudal Law*,⁸⁰ and Marx himself, to Bernier and Montesquieu. Anderson rejected the concept of a *single* Asiatic mode of production and rudely punctured the notions that feudalism had been a universal phenomenon ('an absolving ocean in which virtually any society may receive its baptism'⁸¹). A form of Asiatic feudalism did exist, he contended, but only in Japan. Interestingly, Anderson aligned himself with Montesquieu's argument – brought out more sharply by Anderson than perhaps by any other scholar – that 'the original specificity' that made the European political system distinctive was 'located in feudalism'.⁸² In other words, feudalism was primarily responsible for the mixed institutions which made Europe what it was, a western exception in a Eurasian landmass in which despotism was the norm. Elements of this position have surfaced elsewhere. For instance, feudalism's pan-European profile was not in question. Tocqueville, indeed, referred to feudalism as 'the old constitution of Europe' (both 'l'ancienne constitution de l'Europe' and 'la vieille constitution de l'Europe'), and observed not only the common features it had assumed across the continent but also the stamp of 'political liberty' which it had left upon the middle ages ('la liberté politique elle-même, qui a rempli tout le moyen âge de ses oeuvres').⁸³

Marxists have, of course, dealt with the Europeanness of feudalism, though not out of any attempt to recover past political discourse surrounding questions of European exceptionalism. Their concern has been, primarily, to find a category more universally applicable than feudalism, burdened as it is with so much specifically European baggage, and to bypass the problems associated

with the Asiatic mode. In lieu of Marx's feudal mode of production, Samir Amin, Eric Wolf and John Haldon have proposed a tributary mode (of which feudalism was a particular kind found in Europe) as a more compelling, non-Eurocentric category of Marxist analysis,⁸⁴ though in India serious debate has also continued about the applicability of feudalism as an accurate description of its pre-modern systems of land tenure.⁸⁵ Nevertheless, the arguments of Marxists stand at some considerable remove from the concerns of historians of ideas. While feudalism as a social and economic fact enjoys a central role in Marxist historiography, it tends to be overlooked that it was also a language; that feudal jurisprudence was a mode not only of production, but of understanding politics, and also constituted an important strand within early modern European self-description. Today's lopsided treatment of Montesquieu and Oriental despotism – Anderson excepted – is emblematic of a more general discrepancy: the unwarranted marginalisation of the feudal law within the history of post-medieval political thought.

However, there is some unevenness in the historiography of this Cinderella subject. By a curious irony, the topic of feudalism has been an eccentric presence where least expected: in the history of American political ideas. Its unexpected prominence in certain pockets of American historiography owes much to a powerful revisionist trend in American scholarship: the rejection of the standard environmentalist interpretation of American liberalism advanced in the 1950s by the political scientist Louis Hartz. In *The Liberal Tradition in America* (1955), Hartz contended that it was the absence of any feudal order in America's colonial past that accounted for the distinctive flavour of its politics. There had never been any ancien régime to overthrow, neither a feudal caste nor an oppressive prelacy in the church. Thus Americans had cast off their allegiance to the mother country without the need to overthrow a social hierarchy. As a result no reactionary Right emerged committed to the restoration of an old order (that had never been); nor was a socialist movement required either to combat the Right or to represent a politically self-conscious proletariat. Rather Americans across the social spectrum were committed to a broadly liberal American way underpinned by the ideas of Locke in his *Second Treatise of Government*.⁸⁶ Although the absence of feudalism long remained a key ingredient in the sociology of American exceptionalism, particularly in Seymour Martin Lipset's account of the factors responsible for the non-emergence of American socialist politics,⁸⁷ the Hartz thesis came under fire from different directions. During the 1960s and 1970s, Bernard Bailyn, Gordon Wood and Pocock himself challenged assumptions about the primacy of Lockean ideas in American political discourse, recovering instead a body of republican thinking that diverged significantly from liberalism.⁸⁸ However, historians have also questioned Hartz's ideas about the social and legal institutions found in early America, and suggested a more intricate and ironic story of the interplay between American ideologies and their structural underpinnings.

Most colonies outside New England, it has been argued, witnessed a 'feudal revival' in the eighteenth century, one which the Revolution largely ended.⁸⁹ Indeed, in its early stages John Adams brought anti-feudalist arguments into the patriot campaign in a series of articles in 1765 which became his *Dissertation on the Canon and Feudal Law*.⁹⁰ However, by the late 1770s Adams and several other patriots had, somewhat ironically, moved closer to the feudalist arguments of royalists like Brady as these were reworked in the Scottish Enlightenment.⁹¹ While the Revolution immediately triggered campaigns for the abolition of entail,⁹² several feudal residues survived the supposedly revolutionary transition from colony to republic. The longest-lived of such survivals – not that we would ordinarily classify them as 'feudal' – were the laws of master and servant, which as Karen Orren showed in her book *Belated Feudalism* (1991), persisted in American labour laws into the early part of the twentieth century. Orren shows that, far from the country's liberalism flourishing, as Hartz imagined, in a zone of feudal-free American exceptionalism, liberalism and feudalism coexisted in adjacent areas of institutional life.⁹³ This broader theme – the strange entanglement of feudalism and liberalism – has been extended by Robert Yusef Rabiee in his provocatively titled book, *Medieval America* (2020). Far from the imperatives of the frontier shaping a new form of society, one no longer pocked by feudal excrescences, colonial America had seen, Rabiee insisted,

the successful transplantation from Europe of ‘robust’ feudal institutions. Why else, indeed, would Thomas Jefferson have to campaign in 1776 to eradicate entail and primogeniture in Virginia? Nor did the American Revolution effect a complete transformation of the States into post-feudal, liberal societies. Rather, Rabiee argues – echoing Orren – post-revolutionary America ‘folded feudalism into its emerging liberal order’: liberalism, he emphasises, ‘developed *within* and not *against* feudalism’.⁹⁴

After all, ante-bellum America was a monstrous hybrid, combining advanced capitalist organisation in the north with race slavery in its southern states. The Marxist-turned-seeming-neo-confederate historians Eugene Genovese and Elizabeth Fox-Genovese recognised that while pro-slavery southern intellectuals acknowledged the differences between the plantation and the medieval manor and were far from uncritical of medieval society, they were nonetheless fascinated by its paternalism and chivalric ideals (however flawed) and by a pattern of organic and involved social relations distinct (for all its barbarity) from the callous brutality of industrial capitalism.⁹⁵ But there were other more insidious affinities between the sham-medieval imaginary and contemporary political realities. The political scientist Corey Robin points to the wide dispersal of slaveholding in the ante-bellum South as ‘democratic feudalism’. The fact that many of these slaveowners had only a few slaves each, or perhaps only one, served as an integrating factor reconciling some less prosperous whites to the social order. Every white man, Robin contends, was a potential member of a ‘lordly class’, eligible to share in the ‘privileges and prerogatives’ of governing the enslaved, and thereby inoculated against more subversive forms of radical egalitarianism.⁹⁶ According to Keidrick Roy what he terms ‘racial feudalism’ had a similar balming effect. Southern culture, he argues, was inflected with medievalisms, such as ‘racial fealty’ and ‘racial honor’. By imparting a neo-medieval, quasi-feudal gloss to racial slavery, its apologists attempted to soften its harsher features, extolling an ethos of supposed paternalism, mutual obligations and natural hierarchy.⁹⁷ However, other commentators view the South not as an exception to American liberalism, but simply as a more extravagant and revealing version of the racialised neo-feudal norms of American society more generally. Jennie Ikuta and Trevor Latimer, identifying a close equivalence between Tocqueville’s criteria for feudal aristocracy – heritability, privilege, exclusion – and the underpinnings of white supremacy, detect the lineaments of a racialised aristocracy within his account of nineteenth-century American democracy in *De la Démocratie en Amérique* (1835–40).⁹⁸ Furthermore Milan Zafirovski points to the laissez-faire arguments of American conservatism as a specious smokescreen disguising what is in effect a ‘proxy’ for a feudal-like ‘patrimonial’ capitalism;⁹⁹ which seems to reiterate the point the satirical social evolutionist Thorstein Veblen made more than a century before, that feudal survivals lurked in the practices of the nineteenth-century business elite, most obviously in its patterns of conspicuous consumption.¹⁰⁰

The case of the ante-bellum South, with its ancient-cum-modern forms of economic organisation and faux-medieval cultural aspirations, serves to remind us of the least recognised of the historian’s professional deformations, namely the extent to which our deference to periodisation limits the historical imagination. This flaw is, moreover, the obverse of a trait in which historians justly take pride, our sensitivity to anachronism. But sometimes a hypersensitivity to things that seem out of place constrains our capacity to see the messiness of a past, in which works were read – as surely we ourselves in practice often read – in a higgledy-piggledy order that bears no regard to chronological sequence of publication, and where long-supposedly-redundant ideas jostled, sometimes competitively, with the latest intellectual trends.

This problem looms especially large in the case of feudalism. Kathleen Davis has extended the revisionist arguments of Brown and Reynolds to interrogate fundamental questions about historical periodisation. The old feudal paradigm reinforced the notion of ‘a singularized Middle Ages’; concealed both the proto-modern features of medieval life and the survival of “‘medieval” characteristics in modernity’; and gave rise to misleadingly rigid conceptual binaries across the medieval-modern divide. The sixteenth-century historical quest for the origins of the feudal law not only helped to reify a medieval feudal past, but with the expansion

of Europe was seeded into colonial discourse: feudal institutions, along with religious superstition, came to be viewed as aspects of Europe's medieval past and, significantly, the non-European present. Periodisation, in other words, is not simply a matter of historical chronology, but, Davis argues, has long been interwoven with discourses of power and subordination.¹⁰¹

Davis focuses on the problem of periodisation at the supposed frontier between the middle ages and early modernity. A similar challenge to periodisation, how we locate the divide between Europe's landed ancien regime and its supersession by bourgeois-led industrial modernity, emerges in the work of the Marxist historian Arno Mayer. In *The Persistence of the Ancien Regime* (1981) Mayer described the enduring hold of Europe's landed elite throughout the nineteenth century until the First World War. Feudality in its several European variations is a crucial aspect of this story, as even where postfeudal elites became agrarian capitalists, high culture and high politics, according to Mayer, retained a 'feudalistic spirit'. As late as 1914 Europe was 'heavily agrarian and nobilitarian', with 'feudal elements' retaining 'a formidable place in Europe's authority systems', waves of modernisation, industrialisation and technological change notwithstanding. Terms of art like feudalism, ancien regime, the preindustrial and the premodern, which seem to imply a boundedness at their end point, seem to blur and sprawl in Mayer's controversial revisionist analysis. Mayer also addresses a more general imbalance in historical interpretation, a very understandable preoccupation with 'innovation' at the expense of 'inertia and resistance'. Notwithstanding historians' ostensible rejection of the idea of progress, Mayer detects their 'intense aversion to historical stasis and regression' and a 'marked tendency to neglect or underplay, and to disvalue, the endurance of old forces and ideas'.¹⁰²

Do we as historians experience an overactive immune response when confronted with seeming anachronism of this sort? We might also ask ourselves how far Mayer's criticism applies within the history of political thought, or more particularly the broader extra-canonical history of political argument to which I believe Pocock was pointing in *The Ancient Constitution and the Feudal Law*. How far does our continuing semi-neglect of the feudal idioms and inflections of post-medieval political ideas distort the contours of early modern political argument?

The question indirectly echoes a point made – more than half a century before Pocock's work and the beginnings of what we now know as the Cambridge School – by a distant pioneer in the history of political thought at Cambridge.¹⁰³ According to Neville Figgis, the early modern contractarian theory of government derived both from the blending within the feudal system of public and private right and from the mutuality inherent in the relationship of superior and vassal. The notion of a contract between ruler and governed developed in sixteenth-century Huguenot political thought was, he contended, 'the enduring legacy of feudalism to the modern world.' The contractual relationship set out in the *Vindiciae contra Tyrannos* was the very 'essence' of the feudal system. Not that Figgis overlooked 'the defects of feudalism', including the 'disorder' and 'anarchy' with which it was associated, but counterbalancing these was a 'reciprocity of rights and duties in regard alike to political and economic power'. As such contractarian arguments were not, as they tended to be understood in retrospect, 'abstract', but rather 'a generalisation from the facts of the Middle Ages'. Figgis remarked too of early modern resistance theory – something logically consequent upon a ruler's breaching the contract of government – 'how closely it [was] connected with feudal conceptions'.¹⁰⁴

Have we fully absorbed the implications of Figgis's insights? Or has the rebarbative nature of feudal law deterred a fuller exploration of its lingering influence on later periods? Do we as historians of ideas lust, naturally enough, after conceptual innovation at the expense sometimes of what was more representative, but humdrum, unexciting and seemingly old hat? However, the double-edged concept of early modernity demands that historians not only investigate the ways in which it anticipates modernity, but also the forms of its continued groundedness in the medieval.

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